

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF THE BRONX**

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REMA DOUGLAS, LESLEY DOUGLAS, SHARNICE
BUCKNOR, Individually and as Mother and Natural
Guardian of B.D., an infant under the age of 14 years,
SHAMERE BUCKNOR, as legal Guardian of S.B., a
minor under the age of 18 years,

Plaintiffs,

-against-

THE CITY OF NEW YORK, New York City Police
Department Sergeant ALEJANDRA PEREZ (Shield No.
5589) and "JOHN and/or JANE DOES" Nos. 1, 2, 3, etc.
(whose identity are unknown but who are known to be
personnel of the New York City Police Department) all of
whom are sued in their individual capacities,

Defendants.

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Index No.:

Date Purchased:

SUMMONS

Plaintiff designates Bronx
County as place of trial.

The basis of venue is the location
of the unlawful acts

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action and to serve a copy of
your answer, or, if the complaint is not served with this summons, to serve a notice of appearance,
on the Plaintiff's attorney within **20** days after the service of this summons, exclusive of the day
of service (or within **30** days after the service of this summons if not personally delivered to you
within the State of New York); and in case of your failure to appear or answer, judgment will be
taken against you by default for the relief demanded in the Complaint.

Dated: New York, New York
January 3, 2020

BELDOCK LEVINE & HOFFMAN LLP

By: /s/Marc A. Cannan

Marc A. Canaan

99 Park Avenue, PH/26th Floor

New York, New York 10016

(212) 490-0400

To:

City of New York
Corporation Counsel of the City of New York
100 Church Street
New York, NY 10007

Sgt. Alejandra Perez (Shield No. 5589)
NYPD 41 Precinct
1035 Longwood Ave.
Bronx, NY 10459

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3, etc. (whose identity are unknown but who are known
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VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Rema Douglas, Lesley Douglas, Sharnice Bucknor, Individually and as Mother and Natural
Guardian of B.D., an infant under the age of 14 years, and Shamere Bucknor, as Legal Guardian
of S.B., a minor under the age of 18 years, by their attorneys, Beldock Levine and Hoffman LLP,
for their Complaint, allege as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action brought to vindicate plaintiffs' rights under the Fourth
and Fourteenth Amendments of the Constitution of the United States, through the Civil Rights Act
of 1871, *as amended*, codified as 42 U.S.C. § 1983, with pendant claims under the laws of the
State of New York.

2. Plaintiffs' rights were violated when officers of the New York City Police
Department ("NYPD") unconstitutionally and without any legal basis entered into plaintiffs'

homes, caused plaintiffs to be detained for several hours, and seized and searched plaintiffs' property. By reason of defendants' actions, including their unreasonable and unlawful detention and searches and seizures, plaintiffs were deprived of their constitutional rights.

3. Plaintiffs seek an award of compensatory and punitive damages, and attorneys' fees.

PARTIES

4. At all relevant times, Rema Douglas, Lesley Douglas, Sharnice Bucknor, Individually and as Mother and Natural Guardian of B.D., an infant under the age of 14 years, and Shamere Bucknor, as Legal Guardian of S.B., a minor under the age of 18 years, were and still are residents of the County of Bronx, City and State of New York

5. Defendant City of New York ("City") is and was at all times relevant herein a municipal entity created and authorized under the laws of the State of New York. It has all the powers vested in it by the laws of the State of New York, the City of New York and the Charter of the City of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. Defendant City assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the NYPD. At all relevant times herein, it was the employer of the individually-named defendants.

6. New York City Police Department Sergeant Alejandra Perez, Shield No. 16453, who was a police officer at all relevant times herein ("P.O. Perez"), and P.O. John and/or Jane Does 1, 2, 3, etc. (referred to collectively as the "Individual Defendants") are and were at all times relevant herein, officers, employees and agents of the NYPD.

7. At all times relevant, the Individual Defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees, and officers of the NYPD, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the NYPD at all times relevant herein, with the power and authority vested in them as officers, agents and employees of the NYPD and incidental to the lawful pursuit of their duties as officers, employees, and agents of the NYPD.

8. The Individual Defendants are being sued in their individual capacities.

9. The Individual Defendants' acts hereafter complained of were carried out intentionally, recklessly, with malice, and in gross disregard of plaintiffs' rights.

10. At all relevant times, the Individual Defendants were engaged in a joint venture, assisting each other in performing the various actions described herein and lending their physical presence and support and the authority of their offices to one another.

11. The true names and shield numbers of the John and/or Jane Doe Defendants are not currently known to the plaintiffs. However, they were employees or agents of the City of New York on the date of the incident. Accordingly, they are entitled to representation in this action by the New York City Law Department ("Law Department") upon their request, pursuant to New York State General Municipal Law § 50-k. The Law Department, then, is hereby put on notice (a) that plaintiffs intend to name said individuals as defendants in an amended pleading once the true names and shield numbers of said defendants become known and (b) that the Law Department should immediately begin preparing their defense in this action.

12. Plaintiffs served their Notices of Claim upon the City of New York electronically, using the eClaim system on the New York City Comptroller's website on January 3, 2019, within ninety days of the events giving rise to plaintiffs' claims.

13. Plaintiffs attended a hearing pursuant to section 50-h of the New York General Municipal Law on April 26, 2019.

14. More than thirty days have elapsed since plaintiffs served their Notices of Claim and the City has not offered adjustment or payment thereof.

15. This action has been commenced within one year and ninety days of the accrual of the state law causes of action set forth herein, and within the three-year statute of limitations applicable to federal civil rights actions brought pursuant to 42 U.S.C. §1983.

JURISDICTION

16. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988; the Fourth and Fourteenth Amendments to the United States Constitution.

VENUE

17. Venue is properly laid in the Supreme Court of the State of New York, County of the Bronx because the plaintiffs reside in the Bronx.

STATEMENT OF FACTS

18. Rema Douglas owns a three-family apartment house at 757 East 221st Street, Bronx, New York, (the "apartment house") which she has lived in since 1998.

19. Rema Douglas occupies an apartment on the first floor of the apartment house, which she shares with Lesley Douglas.

20. On and about October 4, 2018, the apartment on the top floor of the apartment house was occupied by Marlene Bucknor; Marlene's children (Sharnice Bucknor, S.B., Shamarr Bucknor, and Shamere Bucknor); and Sharnice Bucknor's daughter, B.D.

21. The basement apartment was occupied by Veronica Douglas, Trishane James, Akeem Lynch, Derek Morgan, London Morgan, Karen Fearon, and a young woman named Lexi.

22. On the night of October 4, 2018, at approximately 11:00 p.m., Sharnice Bucknor was watching a movie in her bedroom when she became aware of police activity on East 221st Street in the vicinity of the apartment house.

23. Upon information and belief, P.O. Perez was one of the police officers engaged in police activity on East 221st Street in the vicinity of the apartment house.

24. Marlene Bucknor left her apartment and ran downstairs to the entrance of the apartment house followed by Sharnice.

25. Marlene Bucknor opened the apartment house door and was confronted by several police officers, one of whom pointed an assault rifle at her,

26. The police demanded to know who the Bucknor family members were and ordered them to go outside.

27. Terrified and crying, Marlene complied with the police officers' demands.

28. Sharnice ran back upstairs to her apartment to get her sister, S.B., and her infant daughter, B.D., who were both asleep at the time.

29. After Sharnice had returned to her apartment to get S.B. and B.D., several police officers entered her apartment pointing weapons at her.

30. Sharnice told the police officers to control their weapons because her little sister and infant daughter were present.

31. Sharnice got B.D. and woke up S.B.
32. Sharnice, S.B., and B.D. exited the apartment.
33. By this time, numerous police vehicles with flashing lights crowded 221st Street outside of the apartment house.
34. Numerous people gathered in the street or looked out of windows from neighboring apartment buildings to watch what was happening.
35. By the time Sharnice, S.B., and B.D. had exited the apartment, everyone from the apartment house was on the street, except for Rema Douglas.
36. Rema Douglas was in bed talking to Lesley Douglas on the telephone when police officers began pounding on her apartment door and demanding that she open the door.
37. At that time, Lesley Douglas was in the hospital recovering from surgery.
38. Rema Douglas was not feeling well at the time. She had recently returned from the hospital where she had been treated for having water on the lung.
39. Ms. Douglas went to the door and asked the police officers if they had a warrant.
40. A police officer responded by telling her to open the door before he kicked it down.
41. Rema Douglas requested that the police officer provide her with a warrant before she opened her door.
42. The police officer continued to threaten to break down Ms. Douglas' apartment door if she did not open it.
43. Marlene, who was outside the apartment house, was terrified that the police officers would hurt Ms. Douglas and pleaded with her to open the door.
44. Ms. Douglas eventually opened the door and two police officers, at least one of whom had his gun drawn and pointing at Ms. Douglas, barged into the apartment.

45. The police officers yelled at Ms. Douglas to leave the apartment.
46. Although Ms. Douglas was only wearing a t-shirt and panties at the time and it was cold and wet outside, the police officers demanded that Ms. Douglas leave her apartment and go outside.
47. Ms. Douglas complied with the police officers' orders by leaving her apartment and going to her front porch, which faced East 221st Street.
48. Police officers demanded that Ms. Douglas get off her front porch and walk to the sidewalk.
49. Ms. Douglas refused to leave the porch because of how she was dressed.
50. Police officers did not allow Ms. Douglas to get dressed but did allow her to remain on her front porch.
51. Police officers ordered Sharnice to stay on the steps of her neighbor's apartment house with S.B. and B.D. Sharnice complied with the police officers' order.
52. Sharnice asked the police officers for permission to take B.D. to her father, who lived a few houses up the street, because it was cold and raining and because B.D. suffered from seizures.
53. The police officers initially refused Sharnice's request, but later allowed B.D.'s paternal grandmother to take B.D. out of the cold and the rain.
54. While Rema Douglas was detained on the front porch and Marlene, Sharnice and S.B. were detained on the steps of the neighboring house, numerous police officers went in and out of the apartment house.
55. Police officers unreasonably and destructively searched plaintiffs' apartments in the apartment house.

56. Rema Douglas continued to ask police officers if they had a warrant to enter and search the apartment house, but police officers ignored her and did not answer her question.

57. Ms. Douglas was detained on the front porch and Marlene, Sharnice and S.B. were detained on the steps of the neighboring house for several hours.

58. Ms. Douglas, Marlene, Sharnice, and S.B. were not permitted to re-enter their house or go anywhere else during that entire time. Plaintiffs were not allowed to use a bathroom during this entire time.

59. When Ms. Douglas, Marlene, Sharnice, S.B., and B.D. were finally released from police custody in the morning hours of October 5, 2018, and allowed to re-enter their respective apartments, they found their belongings in complete disarray as a result of the police officers' improper conduct.

60. As a result of the improper conduct of some or all of the defendant police officers Lesley Douglas' 2017 edition iPad was destroyed and her iPhone 7 went missing.

61. Upon information and belief, the police officers involved in the October 4, 2018 entry and search of plaintiffs' apartments and the detentions of plaintiffs may have included, without limitation, P.O. Perez and John and/or Jane Does Nos. 1, 2, 3, etc.

62. As a direct and proximate result of the events described above, plaintiffs suffered and are continuing to suffer in violation of their federal and state rights without limitation: unlawful arrest and detention; loss of liberty; unreasonable search and seizure; damage or loss of property; deprivations of other constitutional rights; physical pain and suffering; mental anguish and emotional distress; loss of reputation; embarrassment and indignity; and legal fees, costs and expenses.

FIRST CAUSE OF ACTION
(Constitutional Violations -- 42 U.S.C. § 1983)
Against the Individual Defendants

63. Plaintiffs repeat and re-allege each and every allegation above as if fully set forth herein.

64. On information and belief, defendants, under color of state law, subjected plaintiffs to the foregoing acts and omissions without due process of law and in violation of 42 U.S.C. § 1983, thereby depriving plaintiffs of their rights, privileges and immunities secured by the Fourth, and Fourteenth Amendments to the United States Constitution, including, without limitation, deprivation of the following constitutional rights:

- a. freedom from unreasonable search and seizure of their persons and property;
- b. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion or legal justification, and of which wrongful detention plaintiffs were aware and did not consent;
- c. freedom from deprivation of liberty without due process of law; and
- d. equal protection, privileges and immunities under the law.

65. The deprivation of plaintiffs' federal constitutional rights resulted in the injuries and damages set forth above.

SECOND CAUSE OF ACTION
(Individual Supervisory Liability - 42 U.S.C. § 1983)
Against the Individual Supervisory Defendants

66. Plaintiffs repeat and re-allege each and every allegation above as if fully set forth herein.

67. The John and/or Jane Doe supervisory defendants were, at all relevant times, supervisory personnel in the NYPD, with oversight responsibility for the training, instruction,

supervision and discipline of the named and unnamed individual police officer defendants who deprived plaintiffs of their federal constitutional rights.

68. The individual supervisory defendants knew or should have known that the individual defendant police officers were conducting unreasonable entries, searches, seizures and detentions, and depriving plaintiffs of due process of law and other constitutional rights identified above.

69. The individual supervisory defendants were personally involved in the unreasonable entries, searches, seizures, and detentions of plaintiffs. They failed to take preventative and remedial measures to guard against such constitutional deprivations, such that plaintiffs would not be injured. The supervisory defendants knew, or in the exercise of due diligence, should have known, that the actions taken against plaintiffs by the named and unnamed individual police officer defendants were likely to occur.

70. The failure of the individual supervisory defendants to train, supervise and discipline the named and unnamed individual police officer defendants amounted to gross negligence, deliberate indifference or intentional misconduct which directly and proximately caused the injuries and damages to plaintiffs set forth above.

**THIRD CAUSE OF ACTION
(New York State Constitutional Violations)
Against the Individual Defendants**

71. Plaintiffs repeat and re-allege each and every allegation above as if fully set forth herein.

72. Such conduct breached the protections guaranteed to plaintiffs by the New York State Constitution, including but not limited to, Article I §§ 6 and 12, and including the following rights:

- a. freedom from unreasonable search and seizure of their persons and property;
- b. freedom from false imprisonment, that being wrongfully detained without good faith, reasonable suspicion or legal justification, and of which wrongful detention plaintiffs were aware and did not consent; and
- c. freedom from deprivation of liberty without due process of law.

73. The deprivation of plaintiffs' rights under the New York State Constitution resulted in the injuries and damages set forth above.

**FOURTH CAUSE OF ACTION
(Trespass)
Against the Individual Defendants**

74. Plaintiffs repeat and re-allege each and every allegation above as if fully set forth herein.

75. On information and belief, the Individual Defendants, by their aforementioned acts, did intentionally, willfully, and knowingly enter the premises at 757 East 221st Street, Bronx, New York, on October 4, 2018.

76. On information and belief, the Individual Defendants' entry on that date was wrongful in that it was without consent or legal justification.

77. On information and belief, the Individual Defendants committed the foregoing acts intentionally, willfully and with malicious disregard for plaintiffs' rights.

78. As a result, plaintiffs suffered the injuries and damages set forth above.

79. Additionally, defendants are liable for punitive damages.

**FIFTH CAUSE OF ACTION
(False Imprisonment)
Against the Individual Defendants**

80. Plaintiffs repeat and re-allege each and every allegation above as if fully set forth herein.

81. On information and belief, some of the Individual Defendants wrongfully detained plaintiffs and deprived them of their liberty without good faith, reasonable suspicion or other legal justification.

82. Plaintiffs were conscious of, and did not consent to, their confinement.

83. On information and belief, the Individual Defendants committed the foregoing acts intentionally, willfully and with malicious disregard for plaintiffs' rights.

84. As a result, plaintiffs suffered the injuries and damages set forth above.

85. Additionally, defendants are liable for punitive damages.

**SIXTH CAUSE OF ACTION
(Negligence of the Individual Defendants)
Against the Individual Defendants**

86. Plaintiffs repeat and re-allege each and every allegation above as if fully set forth herein.

87. On information and belief, the Individual Defendants, by their aforementioned acts, negligently failed to use due care in the performance of their duties in that they, among other negligent acts:

- a. failed to perform their duties as a reasonably prudent and careful police officer or supervisor would have done under similar circumstances;
- b. carelessly and recklessly entered plaintiffs' home;
- c. carelessly and recklessly seized and detained plaintiffs;

- d. carelessly and recklessly damaged plaintiffs' property; and
- e. carelessly and recklessly detained plaintiffs without a warrant or probable cause.

88. The negligent actions of the Individual Defendants directly and proximately caused plaintiffs' injuries and damages set forth above.

**SEVENTH CAUSE OF ACTION
(Respondeat Superior)
Against defendant CITY OF NEW YORK**

89. Plaintiffs repeat and re-allege each and every allegation above as if fully set forth herein.

90. Defendant City is liable for the actions of the Individual Defendants under the doctrine of *respondeat superior*.

91. None of the Individual Defendants' actions described above were privileged or within the normal course of police activities. None of the Individual Defendants is entitled to any immunity.

92. Defendant City is liable for all damages incurred by plaintiffs as a result of the Individual Defendants' actions described above.

JURY DEMAND

93. Plaintiffs demands a trial by jury in this action on each and every one of their damage claims.

WHEREFORE, plaintiffs Rema Douglas, Lesley Douglas, Sharnice Bucknor, Individually and as Mother and Natural Guardian of B.D., an infant under the age of 14 years, and Shamere Bucknor, as Natural Guardian of S.B., a minor under the age of 18 years, demand judgment against the defendants individually and jointly and pray for relief as follows:

- a. that they be compensated for violation of their constitutional rights, pain, suffering, mental anguish and humiliation;

- b. that they be awarded punitive damages against the Individual Defendants;
- c. that they be compensated for attorneys' fees and the costs and disbursements of this action; and
- d. For such other further and different relief as to the Court may deem just and proper.

Dated: New York, New York
January 3, 2020

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN LLP

By: /s/Marc A. Cannan
Marc A. Canaan
99 Park Avenue, PH/26th Floor
New York, New York 10016
(212) 490-0400

ATTORNEY'S VERIFICATION

I, Marc A. Canaan, an attorney duly admitted to practice before the Courts of the State of New York, affirm the following to be true under the penalties of perjury:

- 1) I am the attorney of record for plaintiffs Rema Douglas, Lesley Douglas, Sharnice Bucknor, Individually and as Mother and Natural Guardian of B.D., an infant under the age of 14 years, and Shamere Bucknor, as Natural Guardian of S.B., a minor under the age of 18 years.
- 2) I have read the annexed Complaint and know the contents thereof, and the same are true to my knowledge, except those matters therein which are alleged upon information and belief, and, as to those matters, I believe them to be true. My beliefs, as to those matters therein not stated upon knowledge, are based upon facts, records, other pertinent information contained in my files.
- 3) This verification is made by me because plaintiffs do not reside in the County where I maintain my offices.

Dated: New York, New York
January 3, 2020

Respectfully submitted,

BELDOCK LEVINE & HOFFMAN LLP

By: /s/Marc A. Cannan
Marc Canaan
99 Park Avenue, PH/26th Floor
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(212) 490-0400